



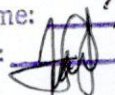
Republic of the Philippines
City of Cagayan de Oro
BARANGAY BALULANG

Republic of the Philippines
OFFICE OF THE CITY COUNCIL
City of Cagayan de Oro

RECEIVED

Date: **SEP 03 2026**

Time: **7:34**

By:  **JUSTIN KYLE P. ASNE**
Local Legislative Staff Officer I

OFFICE OF THE SANGGUNIANG BARANGAY

**EXCERPT FROM THE MINUTES OF THE 64th REGULAR SESSION OF
THE SANGGUNIANG BARANGAY OF BALULANG, THIS CITY, HELD ON
JULY 15, 2026 AT BALULANG SESSION HALL, CAGAYAN DE ORO
CITY**

PRESENT:

HON. EDWIN E. MICABANI	-	Punong Barangay
HON. EDWIN S. DUTERTE	-	Brgy. Kagawad
HON. BOYBLO M. CARCUSA	-	Brgy. Kagawad
HON. REGINALD JAY G. ACAYLAR-	-	Brgy. Kagawad
HON. ROCHELLE M. BATION	-	Brgy. Kagawad
HON. RONIL C. ACEBES	-	Brgy. Kagawad
HON. WILFREDO T. NG SR.	-	Brgy. Kagawad
HON. HERVIN KENT B. PACALDO-	-	Brgy. Kagawad
HON. CHARLES SLADE M. PIQUERO-	-	SK Chairperson
ABIGAIL MAE S. SALO	-	Brgy. Secretary
MARY ANN L. LAMOCHA	-	Brgy. Treasurer

**BARANGAY ORDINANCE NO. 2026-004
Series of 2026**

**AN ORDINANCE INSTITUTING CURFEW HOURS FOR MINORS
IN BARANGAY BALULANG, CAGAYAN DE ORO CITY**

WHEREAS, Section 16 of the Local Government Code of 1991 states that "every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall maintain peace and order, protect life, liberty and property, promote the general welfare and preserve the comfort and convenience of their inhabitants;

WHEREAS, one of the objectives of the Safer Cities initiative is to make communities safer, wherein people may freely go about their daily lives without fear of being harmed;

WHEREAS, the Sangguninang Barangay recognizes the importance of keeping the general public safe from harm, especially minors;

NOW THEREFORE, BE IT ENACTED AS IT IS HEREBY ENACTED by the Barangay Council of Balulang, by virtue of the powers vested in it by law, in session assembled, that:

SECTION 1. This ordinance shall be known as the Curfew Ordinance of Barangay Balulang, Cagayan de Oro City.

SECTION 2. This Ordinance shall be applicable to all individuals under the age of eighteen (18) (hereinafter referred to as "Minors") within the territorial jurisdiction of Barangay Balulang, Cagayan de Oro City.

SECTION 3. For purposes of this Ordinance, the following terms shall be defined as follows:

- a. Minor – Any person below eighteen (18) years of age.
- b. Curfew Hours – The period from 10:00 o'clock in the evening (10:00 P.M.) until 4:00 o'clock in the morning (4:00 A.M.), during which minors are prohibited from staying, loitering, roaming, or remaining in public places, except under the exemptions provided in this Ordinance.
- c. Public Place – Any street, road, sidewalk, alley, park, plaza, playground, market, waiting shed, transportation terminal, parking area, vacant lot open to the public, or any place generally accessible or open to the public within the territorial jurisdiction of Barangay Balulang.
- d. Loitering – The act of lingering, remaining, wandering, standing, sitting, or staying idly in any public place without any lawful purpose or legitimate reason.
- e. Parent – The biological or adoptive mother or father of the minor, or any person exercising parental authority under existing laws.
- f. Legal Guardian – A person duly appointed by law or by a competent court to exercise legal custody and responsibility over a minor.
- g. Person Exercising Parental Authority – Any individual who, under law, has the care, custody, supervision, or responsibility over a minor, including a substitute parent or guardian recognized by law.
- h. Barangay Council for the Protection of Children (BCPC) – The barangay-based council established pursuant to existing laws and regulations tasked with promoting and protecting the rights and welfare of children and implementing child protection programs.
- i. Intervention Program – A series of child-appropriate activities, services, or measures designed to address the circumstances leading to a child's violation of this Ordinance, promote rehabilitation, strengthen family responsibility, and prevent the commission of further violations, consistent with Republic Act No. 9344, as amended.
- j. Community Service – An activity or work beneficial to the community, assigned as part of the barangay's intervention program, to be jointly performed by the child and his or her parent, legal guardian, or person

exercising parental authority, under the supervision of the Barangay or the BCPC.

k. Emergency – Any unforeseen event or circumstance requiring the immediate presence or action of the minor, including but not limited to fire, earthquake, flood, medical emergency, accident, death of an immediate family member, or any similar situation requiring urgent response.

l. Authorized Activity – Any school, religious, civic, cultural, sports, recreational, educational, government, or community activity officially organized or authorized by the school, government agency, barangay, or duly recognized organization, requiring the attendance of the minor during curfew hours.

m. Working Student – A minor who is lawfully employed while pursuing formal education and can present proof of employment and school attendance when required by the proper authorities.

SECTION 4. Minors shall be prohibited from staying, loitering, roaming on public places/areas from 10:00PM to 4.00AM.

SECTION 5. Minors under the following circumstances shall not be covered by the provisions of this ordinance;

- a. Those accompanied by their parents or guardian;
- b. Those on their way to or from a graduation ceremony, religious mass, and/or other extracurricular activities of their school or organization wherein their attendance are required or otherwise indispensable, or when such minors are out and unable to go home early due to circumstances beyond their control as verified by the proper authorities concerned;
- c. Those attending to, or in experience of, an emergency situation such as conflagration, earthquake, hospitalization, road accident, and similar incidents;
- d. When the minor is engaged in an authorized employment activity, or going to or returning home from the same place of employment activity without any detour or stop;
- e. When the minor is in a motor vehicle or other travel accompanied by an adult;
- f. When the minor is involved in an emergency;
- g. When the minor is out of his/her residence attending an official school, religious, recreational, educational, social, community or other similar private activity sponsored by the city, barangay, school, or other similar private civic/religious organization/group (recognized by the community) that supervises the activity or when the minor is going to or returning home from such activity, without any detour or stop; and
- g. When the minor can present papers certifying that he/she is a student and was dismissed from his/her class/es in the evening or that he/she is a working student.

SECTION 6. Minors found in violation of this Ordinance shall be immediately brought to their residence or to any barangay official at the barangay hall to be released to the custody of their parents.

SECTION 7. The following shall be imposed for violation of this Ordinance:

VIOLATION	
First (1 ST)	Admonition
Second (2 nd) and Succeeding Violations	Non-punitive sanctions consisting of intervention programs pursuant to R.A. NO. 9344, as amended, and its implementing rules and regulations. Core Non-Punitive Sanctions and Programs: 1. Intervention Programs (For Children 15 Years Old and Below) 2. Diversion Programs (For Children Above 15 Years Old) 3. Bahay Pag-Asa Placement Parental Responsibility. In the case of a second (2nd) and succeeding violation committed by a child, the parent, legal guardian, or person exercising parental authority shall be required to personally appear before the Barangay Council or the Barangay Council for the Protection of Children (BCPC) for counseling and parental responsibility orientation. The parent or guardian shall execute a written Undertaking affirming that they shall exercise proper supervision, guidance, and control over the child and shall take the necessary measures to prevent the recurrence of the violation. As part of the barangay's intervention program, the parent or legal guardian and the child shall jointly perform community service, the nature and duration of which shall be determined by the Punong Barangay or the BCPC, taking into consideration the child's best interests and in accordance with Republic Act No. 9344, as amended, and other applicable laws. Repeated violations may also be referred to the appropriate social worker or other concerned agencies for further assessment and family intervention.

SECTION 8. Repealing Clause. All ordinances or resolutions or parts thereof inconsistent therewith or parts hereof are hereby deemed repealed, amended or modified accordingly.

SECTION 9. Effectivity Clause. This Ordinance, upon its approval shall take effect immediately after ten (10) days from the date a copy thereof is posted in a bulletin board at the entrance of the barangay hall and in at least two (2) other conspicuous places in the local government unit concerned.

ENACTED this 15th day of JULY, 2026 at Barangay Balulang, City of Cagayan de Oro.

UNANIMOUSLY APPROVED.

I hereby certify that the foregoing ordinance was duly enacted by the Sangguniang Barangay of Barangay Balulang during its 64th Regular Session on July 15, 2026 at Barangay Balulang, Cagayan de Oro City.

ABIGAIL NAE S. SALO

Barangay Secretary, Sangguniang Barangay

ATTESTED AND CERTIFIED
TO BE DULY ENACTED:

HON. EDWIN E. MICABANI

Punong Barangay

APPROVED:

HON. EDWIN S. DUTERTE

Barangay Kagawad

HON. BOYBLO M. CARCUSA

Barangay Kagawad

HON. REGINALD JAY G. ACAYLAR

Barangay Kagawad

HON. ROCHELLE M. BATION

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HON. WILFREDO T. NG SR.

Barangay Kagawad

HON. HERVIN KENT B. PACALDO

Barangay Kagawad

HON. CHARLES SLADE M. PIQUERO

SK Chairman

-----Nothing Follows-----